

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

SENATE BILL NO. 2354
(Senators Axtman, Cleary, Sickler, Thomas)
(Representatives Bosch, O'Brien)

AN ACT to amend and reenact the new section to chapter 15.1-07 of the North Dakota Century Code, as created by House Bill No. 1160, as approved by the sixty-ninth legislative assembly, relating to the use of personal electronic devices in schools providing prekindergarten, elementary, or secondary education.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. The new section to chapter 15.1-07 of the North Dakota Century Code, as created by House Bill No. 1160, as approved by the sixty-ninth legislative assembly, is amended and reenacted as follows:

Personal electronic devices - Prohibition during instructional time.

1. As used in this section:
 - a. "Instructional time" means the time from the start of the school day until dismissal at the end of the school day on school premises, for which the signal may be the ringing of a bell, including a structured or unstructured learning experience, recess, a lunch period, and time in between classes. The term does not include private student travel time to and from an area career and technology center or other offsite learning experience or instructional time occurring in virtual environments off school premises.
 - b. "Parent" means a parent or guardian of a student who is authorized to make decisions regarding education for the student.
 - c. "Personal electronic communication device" means a portable electronic device capable of communication by voice, text, or other data with one or more other parties or devices, or capable of connection to a smartphone, the internet, or a cellular or wireless fidelity network, including a smartphone, cell phone, bluetooth-enabled device, tablet, smartwatch or other wearable device, and gaming device. The term does not include:
 - (1) School-owned devices provided to a student and school-approved devices used by a student in accordance with this section.
 - (2) Portable devices that meet the definition of a medical device under the federal Food, Drug and Cosmetic Act [21 U.S.C. 9 et seq.].
 - d. "School" means a public school providing prekindergarten, elementary, or secondary education, including area career and technology centers. The term does not include virtual schools, virtual instruction, the North Dakota center for distance education, or education occurring in a home-school environment.
 - e. "School-related activity" means a school sanctioned activity, event, or function, occurring outside of instructional time, at which students are under supervision of the school, whether on or off school premises, including a bus ride, field trip, sporting event, and school dance.
 - f. "Student" means an individual currently enrolled or registered at a school as defined under subdivision d of this section.

2. Each school district or applicable governing body shall adopt and implement a policy for schools which:
 - a. Requires all personal electronic communication devices be silenced or turned off, securely ~~locked~~stowed away, and inaccessible to students during instructional time;
 - b. ~~Ensures students do not have access to personal electronic communication devices, by requiring the devices to be locked or stowed away in a secure lockable pouch, phone locker, pencil pouch, manila envelope, or other inaccessible location;~~
 - e. Provides schools may limit or allow student access to personal electronic communication devices outside of instructional time, during a school-related activity;
 - ~~d.c.~~ Includes enforcement provisions to ensure strict compliance with the policy by students and school employees; and
 - ~~e.d.~~ Provides a student may contact the student's parent or authorized caregiver during the school day if needed by using a school telephone made available to the student in a manner and location designated by the school.
3. Notwithstanding subsection 2, a school may not prohibit a student from possessing or using a personal electronic communication device, if:
 - a. A medical provider licensed under title 43 determines the possession or use of a personal electronic communication device is necessary for the health or well-being of the student; or
 - b. The possession or use of a personal electronic communication device is required by the student's individual education program under the:
 - (1) ~~The Individuals with Disabilities Education Act [Pub. L. 91-230; 84 Stat. 121; 20 U.S.C. 1400 et seq.]; a plan under section;~~
 - (2) Section 504 of the federal Rehabilitation Act of 1973 [29 U.S.C. 794]; or other; or
 - (3) A plan that must be accommodated~~developed~~ in accordance with state or federal law requiring accommodation.
4. A school district shall collect data annually with the goal of measuring the impact of its policy on student behavior, mental health, disciplinary incidents, school attendance, and academic performance. ~~By July 1, 2026, the superintendent of public instruction shall establish a uniform system to enable a school district to report all data as required under this section.~~
5. Upon the adoption and implementation of a policy in accordance with this section, a school district shall:
 - a. Ensure the policy is communicated to students, parents, and authorized caregivers; and
 - b. Publish the policy in student and personnel handbooks.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2354.

Senate Vote: Yeas 45 Nays 2 Absent 0

House Vote: Yeas 73 Nays 17 Absent 4

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State